

**Expungement Award
FINRA Dispute Resolution Services**

In the Matter of the Arbitration Between:

Claimant

Mark William Thatcher

Case Number: 25-00690

vs.

Respondent

Merrill Lynch, Pierce, Fenner & Smith Incorporated

Hearing Site: Los Angeles, California

Awards are rendered by independent arbitrators who are appointed pursuant to Rule 13806 of the Code of Arbitration Procedure (“Code”) to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Associated Person vs. Member

The expungement hearing was conducted by videoconference.

REPRESENTATION OF PARTIES

For Claimant Mark William Thatcher (“Claimant”): Peter Lindholm, Esq., HLBS Law, Broomfield, Colorado.

For Respondent Merrill Lynch, Pierce, Fenner & Smith Incorporated (“Respondent”): Shruti Jaishankar, Esq., Maynard Nexsen, PC, Nashville, Tennessee.

CASE INFORMATION

Statement of Claim filed on or about: April 2, 2025.

Claimant signed the Submission Agreement: April 2, 2025.

Statement of Answer filed on or about: June 24, 2025.

Respondent signed the Submission Agreement: June 24, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted a claim seeking expungement of customer dispute information from registration records maintained by the Central Registration Depository (“CRD”).

In the Statement of Answer, Respondent took no position on Claimant’s expungement request.

RELIEF REQUESTED

In the Statement of Claim, Claimant (CRD Number 4470726) requested:

1. Expungement of Occurrence Numbers 1438744 and 1515240, from his CRD records, pursuant to FINRA Rule 2080(b)(1)(A), as the claim, allegation, or information is factually impossible or clearly erroneous;
2. Expungement of Occurrence Numbers 1438744 and 1515240, from his CRD records, pursuant to FINRA Rule 2080(b)(1)(C), as the claim, allegation, or information is false;
3. Deletion of all Disclosure Reporting Pages accompanying Occurrence Numbers 1438744 and 1515240; and
4. Any and all other relief that the Panel deems just and equitable.

In the Statement of Answer, Respondent did not set forth any specific relief request.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrators acknowledge that they have each read the pleadings and other materials filed by the parties.

On April 21, 2025, Claimant advised that the customer in Occurrence Number 1515240 ("Ms. S") was served with a copy of the Statement of Claim, although not within 10 days of filing the Statement of Claim, and provided proof of service.

On April 21, 2025, Claimant submitted LexisNexis death record for the customer in Occurrence Number 1438744 ("Mr. S"). On April 28, 2025, Claimant filed an Affidavit confirming that he was unable to serve the Statement of Claim on Mr. S as Mr. S is deceased. The Panel accepted Claimant's representation that service was impracticable because he is deceased.

On June 25, 2025, Claimant advised that Ms. S was served with a copy of the Statement of Answer within 10 days of its filing and provided proof of service.

On November 21, 2025, the authorized representative of the state securities regulator for California ("State Regulator") submitted a written statement and opposed the expungement request.

The Panel conducted recorded hearing by videoconference on December 11, 2025, so the parties could present oral argument and evidence on Claimant's request for expungement. Claimant appeared by videoconference at the expungement hearing. Respondent appeared at the expungement hearing.

Ms. S did not appear at the expungement hearing.

The authorized representative of the State Regulator appeared at the expungement hearing by videoconference and opposed the expungement request.

On December 1, 2025, Claimant filed a Motion for Sanctions against the State Regulator ("Motion for Sanctions") for violation of FINRA Rules 13206 and 13805. On December 5, 2025, the authorized representative of the State Regulator filed a response opposing the Motion for

Sanctions. At the recorded hearing on December 11, 2025, the Panel heard oral arguments on the Motion for Sanctions. The Panel hereby denies the Motion for Sanctions.

AWARD

After considering the pleadings, the testimony and evidence presented at the expungement hearing, the Panel has decided in full and final resolution of the issues submitted for determination as follows:

1. Claimant's request for expungement of Occurrence Numbers 1438744 and 1515240 from registration records maintained by the CRD is denied with prejudice. Pursuant to Rule 13805 of the Code, the Panel's decision to issue an award containing relief for expungement of customer dispute information must be unanimous. Arbitrators Gerald H. Grayson and Phyllis Karasov found that one or more of the grounds for expungement in Rule 13805 of the Code were established. Arbitrator Evalyn Lipton Fishbein found that Claimant failed to bring the case within the time specified in Rule 13805 of the Code.
2. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$ 2,000.00
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**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm(s) that employed the associated person(s) at the time of the event(s) giving rise to the dispute. Accordingly, as a party, Respondent is assessed the following:

Member Surcharge	= \$ 2,600.00
Member Process Fee	= \$ 5,005.00

Hearing Session Fees and Assessments

The Panel has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator(s), including a pre-hearing conference with the Arbitrator(s), which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) pre-hearing session with the Panel @ \$1,725.00/session	= \$ 1,725.00
Pre-Hearing Conference: July 21, 2025 1 session	
One (1) hearing session on expungement request @ \$1,725.00/session	= \$ 1,725.00
Hearing: December 11, 2025 1 session	

Total Hearing Session Fees	= \$ 3,450.00
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The Panel has assessed the total hearing session fees to Claimant.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATION PANEL

Evalyn Lipton Fishbein	-	Public Arbitrator, Presiding Chairperson
Phyllis Karasov	-	Public Arbitrator
Gerald H. Grayson	-	Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Concurring Arbitrator's Signature

Evalyn Lipton Fishbein

Evalyn Lipton Fishbein
Public Arbitrator, Presiding Chairperson

12/17/2025

Signature Date

Dissenting Arbitrators' Signatures

Phyllis Karasov

Phyllis Karasov
Public Arbitrator

12/17/2025

Signature Date

Gerald H. Grayson

Gerald H. Grayson
Public Arbitrator

12/16/2025

Signature Date

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December 17, 2025

Date of Service (For FINRA Dispute Resolution Services use only)